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Senate of Virginia Floor Session, Tuesday, February 10, 2026

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[00:01:18] This is the Senate of Virginia, Richmond, Virginia.

[00:02:23] Chamber.

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[00:03:36] This is the Senate of Virginia, Richmond, Virginia.

[00:05:20] Chamber.

[00:05:39] This is the Senate of Virginia, Richmond, Virginia.

[00:08:13] Senate chamber.

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[00:09:54] The Senate of Virginia. Richmond, Virginia. Senate Chamber.

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[00:16:27] This is the Senate of Virginia. Richmond, Virginia.

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[00:22:35] This is the Senate of Virginia, Richmond, Virginia.

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[00:28:56] this is the Senate of Virginia Richmond Virginia the Senate will come to order

[00:30:10] the senators will please take their seats those persons not entitled to the privileges of the floor will retire to the gallery the senators and all in attendants will please stand if you're able and be led in prayer today by Rabbi Sherry Grinsteiner from Congregation Orated in Henrico County and following the prayer everyone will please remain standing and be led in the Pledge of Allegiance to the flag of the United States of America by Senate page Maven

[00:30:42] Lackey of Hampton. Holy One, your sacred text outlines specific requirements for those called to judge and lead a nation. To be capable, God-fearing, people of truth who despise dishonest gain. Here in this assembly, as with the judges of old, gather members entrusted with the power to administer, to legislate, and to lead this great Commonwealth of Virginia. Source of life, as you supported and

[00:31:20] guided the judges of old, so too be with these Senate members. In moments of adversity and strife, remind them they need neither flattery nor favoritism, but the courage to use reason and seek compromise for the good of all.

[00:31:43] In times of doubt and fear, remind them that their highest reverence should be to you and that they should uphold justice even when it is unpopular or difficult.

[00:32:00] them to steadfastly pursue truth, to be consistently reliable, to keep their word, and to seek the heart of every matter. Grant them the strength to reject dishonest gain, to refuse bribes, and to abhor corruption.

[00:32:20] The yoke of leadership is indeed heavy and demanding. Bless these Senators with the wisdom to do their best, instill in them reverence so they seek the right path guard them with a love for truth and honesty so they may truly merit the title of righteous judges and righteous leaders and let us

[00:32:48] say amen I pledge allegiance to the flag of the United States of America and to the Republic for which it stands one nation under God indivisible with

[00:33:09] the clerk will call the roll all those present please vote aye the clerk will

[00:34:00] close the roll you have a quorum madam president Senate journal for Monday February 9th 2026 the senator from Western Fairfax moves that the reading of the journal be waived all in favor of waiving the reading of the journal will record their vote aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[00:34:26] Do any senators desire to change their vote? The clerk will close the roll. Ayes 36, noes 3. Ayes 36, noes 3. The reading of the journal is waived. The clerk will report any communications from the House of Delegates. The chair recognizes the senator from Eastern Fairfax.

[00:34:49] Good afternoon, Madam President. Good afternoon. Madam President, I move to waive the reading of the communication from the House of Delegates. The question is, shall the reading of the communication be waived? All in favor of waiving the reading of the communication from the House of Delegates will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 32, noes 7. Ayes 32, noes 7. The reading of the communication is wave the clerk will report any communications from the governor we do

[00:35:29] not have any madam president we've now arrived at the time in the morning hour when we have the honor of welcoming our distinguished guests who are joining us today in the Senate gallery I give my daily reminder that a senator will rise and provide an introduction for their visitors I will then offer the welcome of the Senate and I ask that we all hold our applause until I've had the opportunity to provide the Senate's welcome. The chair recognizes the senior senator from Virginia Beach. Good afternoon Madam President, I rise for an

[00:36:07] introduction. Senator has the floor. Madam President, it's my pleasure today to introduce Rabbi Sheri Greensteiner, a respected faith leader and educator who brings more than 25 years of dedication to the Jewish learning, community building and spiritual leadership. Rabbi Greensteiner was born and raised in Israel and has devoted her career to nurturing meaningful education for both young adults. Over the years, she has developed and led impactful programs in Jewish institutions across Iowa, Texas, and Colorado

[00:36:41] where her leadership strengthened both religious practices and lifelong engagement and learning. In January 2021, Rabbi Greensteiner received her rabbinic ordained ordination from Alif, the Jewish Renewal Ordination Program.

[00:37:01] She now serves the Commonwealth of Virginia as a congressional rabbi for Congregation Oratid, where she continues her commitment to faith, service, and community. Together with the Senator from Henrico, we are honored to welcome her here to the Senate today, and we ask for the warm welcome of the Senate. Thank you.

[00:37:23] I thank the Senator for that introduction, and Rabbi, if you don't mind standing, we would love to provide you with the warm welcome. Thank you so much for providing the words of blessing and prayer today. They are so meaningful, and we deeply appreciate you joining us.

[00:37:42] I know you're joined in the Senate gallery by friends David and Robin Galpern, if you don't mind standing as well. Senators, I ask that we give the warm welcome of the Senate to Rabbi Grinsteiner and her friends David and Robin Galpern.

[00:38:06] Madam President, while I'm still standing, I'd like to do a second introduction. The Senator has the floor. Thank you, Madam President. I have the pleasure today to introduce the Student Leaders Committee from the city of Virginia Beach. These students serve on subcommittees of Virginia Beach Historical Preservation Commission, a City Council appointed advisory body that works to preserve, protect, and maintain the historic identity of Virginia Beach through a program of advocacy and increased public awareness and involvement.

[00:38:36] The Commission was the recipient of the Preservation Virginia's 2020 Catherine Gliese Rockwood Award for Outstanding Community Preservation. Their involvement of students in the local preservation program was one of the primary reasons cited for receiving this recognition.

[00:38:55] The Student Leaders Committee is composed of high school students from both public and private schools. These student leaders serve as advocates for historic preservation and their schools and community and work on projects that raise awareness about the historical character of Virginia Beach.

[00:39:17] Today, the Student Leader Commission members are in Richmond extending their advocacy efforts to the highest level of the Commonwealth. These amazing students are being escorted around the Capitol today by Ian Lehach, who's one of their former leaders as well.

[00:39:34] Madam President, on behalf of myself, the junior senator from Virginia Beach, and the senator from Chesapeake and Southern Virginia Beach, I ask that we extend the warm welcome of the Senate. Thank you.

[00:39:51] Thank you, Senator, for that introduction, and thank you to the Virginia Beach Historic Preservation Commission, our high school leaders, for the work that you are doing. Preserving our history is so critical for all of us and for future generations.

[00:40:07] Thank you for the leadership you're providing and making sure that we preserve the history of our localities, and in this case, Virginia Beach. and thank you to your mentor and guide today. I hope you're having productive conversations as you visit our legislators.

[00:40:25] Senators, I ask that we give the warm welcome of the Senate to the Virginia Beach Historic Preservation Commission, its high school leaders. The chair recognizes the senior senator from Prince William.

[00:40:44] Thank you, Madam President. Rise for the purpose of an introduction. Senator has the floor. Thank you, Madam President. Today in the gallery, I have a couple of constituents. one of which if you're on the Committee of Education and Health, you will recognize him. His name is Justin Rebel. At six years old, he's joined with his mom here, Kelly Rebel.

[00:41:04] But if you're in committee, you saw Rustin's testimony, you know he's batting a thousand. I mean, he's knocking it out of the park, advocating for type one diabetes. I know people want to recruit him to speak to your bills. He's not available. He's my constituent, you can't get them. Maybe next year we can negotiate it. But he's done a fantastic job advocating for type one and sharing his experience. And Madam President, please give him the warm welcome of the Senate. Thank you, Senator, for that introduction. Appreciate your highlighting

[00:41:39] of the work of Rustin. Rustin, what an impressive young man you are. Thank you for being here today, not just in the senate gallery but also for testifying in front of so many people to make sure that

we understand the issues that you are facing and thanks for bringing your mom with us with you uh thanks for bringing your mom kelly revel uh to join us as well senators i ask that we give the warm welcome of the senate to rustin revel and his mother kelly revel

[00:42:12] the chair recognizes the senator from northern fairfax Thank you madam president. I rise for an introduction. Senator has the floor. Thank you madam president. Today we have people here from the Arc of Northern Virginia. If y'all would like to stand up I'd love to introduce you. It is good to see my friends and neighbors and folks that I've been working with for years.

[00:42:43] The Arc of Northern Virginia is the leading advocate for people with intellectual and developmental disabilities and their families who are working every day to ensure full participation in our schools, in our communities and in our democracy. They are here today at the Capitol to advocate for the protection of voting rights, for strong funding for community based services, and for inclusive schools and communities where everyone belongs.

[00:43:09] We're grateful for their voices and their leadership and continued partnership in building a more inclusive Commonwealth. And it's just a delight to see Cassie and all of my other friends that have been such lovely members of our community, and I ask that you give them all a warm welcome. Thank you, Senator, for that introduction, and welcome to the Arc of Northern Virginia. Thank you for your continuous work.

[00:43:36] You are familiar faces because you are here so regularly making sure that your legislators understand the priorities and the critical need to provide support and resources for our loved ones. senators i ask that we give the warm welcome of the senate to the representatives from arc of northern virginia the chair recognizes the senator from roanoke thank you madam president i rise for

[00:44:12] an introduction senator has the floor thank you madam president uh i'd like to direct your attention to representatives from virginia 211 that are in the gallery today here at the capitol it was 20 years ago today that then governor kane made the very first call to virginia 211 and since then millions of virginians have been served and we are very appreciative especially in roanoke where specifically the council of community services provides these services to

[00:44:47] the commonwealth and i asked madam president that you give them the warm welcome of the senate Thank you, Senator, for that introduction and welcome to the representatives of 211 Virginia. I know we're celebrating the 20th anniversary. Thank you for all of the work that you have done to provide services for so many all across the Commonwealth. We deeply appreciate the leadership.

[00:45:14] Senators, I ask that we give the warm welcome of the Senate to the representatives of 211 Virginia. the chair recognizes the senator from portsmouth thank you madam president i was just thinking you be careful what you pray for because you may get it just make sure when you get it you're ready to put in the work for it i missed my group this morning madam president visiting here today

[00:45:51] in the capitol are students from madam president i rise for the purpose of an introduction senator has the floor i prayed for that too madam president visiting here with us today in the capital are students from norfolk state university accompanied by members of their administration and faculty including university president dr javon adams gaston they are visiting the capital today for the annual day on the hill these students are spending the day visiting with our offices and they miss me sharing their personal experiences and getting a first-hand look at the

[00:46:24] work that takes place here at the general assembly during session as a proud alumni of norfolk state university i'm excited to see the nsu community in richmond supporting policies and strengthen institutional sustainability expand student access and affordability and support workforce development social and economic mobility across the commonwealth i ask that you join me in giving the norfolk state university students and administration a very warm welcome of the senate matter president thank you for that introduction and i know that uh norfolk state university is

[00:47:00] proud not just of you, Senator, as one of their distinguished alum, but so many distinguished alum who are in the General Assembly. Thank you to the president, to the administrators, to the students who are joining us here to represent Norfolk State University. Thank you for making sure that our legislators understand your priorities, and I hope you have a productive day as you visit so many of our lawmakers' offices. Thank you for joining us.

[00:47:29] Senators, I ask that we give the warm welcome of the Senate to the representatives from Norfolk State University. The chair recognizes the senator from Baudetat. Thank you, Madam President. I rise for the purpose of an introduction. Senator has the floor. Thank you, Madam President. Today we're joined in the gallery by a group of dedicated advocates from the Alzheimer's Association. If they would stand. The Alzheimer's Association is the leading voluntary health organization in the fight against Alzheimer's disease and other dementias. Their volunteers include caregivers, individuals living with

[00:48:09] dementia, health care professionals, and community members who are working every day to support families and strengthen dementia care in our Commonwealth. In Virginia alone, the number of people aged 65 and older with Alzheimer's is 164,000. That's roughly 11.7% of the 65 and older population. In addition, there are more than 346,000 unpaid caregivers in Virginia. Of those, 64% have chronic health conditions, 31% do so while battling depression, and 15% of the caregivers are already in poor physical condition themselves.

[00:48:44] These advocates are here today to share their perspectives and to help ensure that the voices of those affected by Alzheimer's are heard and seen, and I appreciate their willingness to take the time to be here and to advocate on behalf of so many Virginians. So please join me in giving them a warm tonight welcome. Thank you, Senator, for that introduction, and thank you to the representatives of the Alzheimer's Association. Your work is so critical and your advocacy on behalf of loved ones and caregivers that you represent is absolutely vital. I greatly appreciate the voice that you are bringing as you talk to our legislators and continue to share the personal stories and the ways in which we can

[00:49:23] improve our care for those individuals who have Alzheimer's. Senators, I ask that we give the warm welcome of the Senate to the representatives of the Alzheimer's Association. The chair recognizes the senator from King George. Thank you, Madam President. I rise for an introduction. Senator has the floor. Thank you, Madam President. It's my pleasure to bring to the attention of the members the presence in the gallery of the folks from the Northern Neck

[00:49:58] Association of Realtors. Madam President, I just want to thank them and commend them for their service in keeping our economy going but more importantly serving the American dream of having people own a home and madam president I would ask that we give them the warm welcome of the Senate thank you senator for that introduction and if you're standing now so thank you representatives from the Northern Neck Association of Realtors thank you for all that you do to help so many in our

[00:50:32] communities and their aspirations of home ownership we know it's uh it's very important and critical work and especially thank you for the work in representing the northern neck senators i ask that we give the warm welcome of the senate to the representatives of the northern neck association of realtors the chair recognizes the senator from western henrico thank you my president madame president i rise for an introduction senator has the floor thank you - Thank you, Madam President.

[00:51:06] Madam President, members of the body, today is Brain Injury Awareness Day at the General Assembly, which brings hundreds of advocates from around the Commonwealth to come speak to the impact on brain injury. Brain injury can affect any one of us at any time, and as a matter of fact, it's one of the largest disability populations in Virginia with an estimated 340,000 Virginians living with a disability resulting from a brain injury.

[00:51:28] Today in the gallery are members and staff of the Mill House, a clubhouse program for adults with brain injury that serves the Richmond area and is operated by the Community Brain Injury Services. Community Brain Injury Services, or CBIS, as it is commonly known, is one of eight state-funded safety providers in the Commonwealth, and they serve a 26-locality service area.

[00:51:46] Last year, they served an all-time record 690 individuals and families through their intensive case management. Despite this, record numbers of persons served, they still have waiting lists to some of the services, as do many of the providers that make up our safety net system of care in Virginia.

[00:52:01] Our Brain Injury Service of Care needs further investments to meet the needs of people in the Commonwealth and I'm glad they are here with us today. So let's give them a warm Senate welcome. Thank you Senator for that introduction and thank you to the representatives from the Brain Injury Association of Virginia. We know how critical this work is and as the senator pointed out this is a trauma that affects so many in our communities and the opportunities for the sustained care, the opportunities for therapeutic therapies that are offered through the clubhouses are so necessary.

[00:52:36] Thank you for the work that you do to take care of so many loved ones. Senators, I ask that we give the warm welcome of the Senate to the Brain Injury Association of Virginia. The chair recognizes the senator from Colonial Heights. Thank you, Madam President. Rise for an introduction. Senator has the floor.

[00:53:03] Thank you, Madam President. Joining us in the gallery today is our students and parents from across the Commonwealth who are here for the Don't Tread on Parents Day of Activism here at the General Assembly, sponsored by the Family Foundation, here to advocate for parents' rights, education choice, and girls' sports. I believe a few of them just entered the chamber now and I'd that we offer them the warm welcome of the Senate thank you senator for that introduction and welcome to the organized organizers of don't tread on

[00:53:41] parents thank you for your representation and I hope you're having wonderful opportunities throughout today to speak with our lawmakers to share your priorities and your concerns thank you for your representation that you are providing senators I ask that we give the warm welcome of the Senate to the representatives of don't tread on parents the chair recognizes the senator from Isle of Wight thank you madam president rise for an introduction senator has the floor thank you madam president today in Capitol Square we're

[00:54:20] celebrating a time-honored tradition the stew masters from Brunswick County made the long trek to prepare delicious Brunswick stew for all of us to enjoy first and foremost I think I'm must be required by the code to say that also it is coincidentally the home of madam clerk this official event was established over two decades ago by joint resolution two, but it's more than just lunch.

[00:54:42] It's a celebration of Virginia's heritage and a moment for us to celebrate all what makes our Commonwealth unique and great. Governor Spanberger and I had the honor this morning to officially stir the stew and welcome the entire Brunswick County delegation to the Capitol grounds. Very special thank you to the Pear family for the care and effort they put into preparing today's stew.

[00:55:01] Hopefully you all have tried it. And I also want to give a shout out to our Brunswick County leaders that are here today in the gallery all of their hard work and helping to set up and prepare and greet all of you as you walk towards the Capitol today. Now to a serious matter, Madam President. Since 1828, I must unequivocally state that Brunswick County, Virginia is a true and original home of Brunswick stew. Full stop.

[00:55:27] Georgia, if you're listening, you're wrong. Thank you, Madam President, for allowing the record to reflect such and I hope we can give the Brunswick County delegation the warm welcome of the Senate and thank you for lunch. - Thank you, Senator, for that introduction.

[00:55:43] As someone who was originally a Georgia girl, it was my understanding that it was Brunswick, Georgia that was the home, but I will say, having been a Virginian now for close to four decades, my heart is with Brunswick County, Virginia.

[00:56:03] We know where the true home of Brunswick stew is, and it is in Virginia. Thank you so much to the representatives who are here. Thank you for stirring the stew today, and thank you for feeding all of our legislators and visitors this afternoon.

[00:56:20] Your commitment to this service is deeply appreciated. We appreciate the Brunswick County supervisors who are here, as well as all the staff and volunteers. Brunswick County, Virginia, the home of the real Brunswick stew.

[00:56:38] senators let's give the warm welcome of the senate the chair recognizes the senator from alexandria thank you madam president rice for an introduction senator has the floor in the gallery we're joined today by leadership from the greater washington society of clinical social workers who hail from several northern virginia jurisdictions and it was 50 years ago that the society was formed by a small group of Virginia social workers who came together to advocate for recognition

[00:57:17] and regulation of their profession. They've been successful over the years in advocating for their clients and for the highest professional standards. And recently they've redoubled their efforts to help fill a significant gap, a service gap in the behavioral health space.

[00:57:34] And recently the Society led the charge for work that you sponsored, Madam President, the adoption of the social work compact under your sponsorship. Since the adoption of the compact in Virginia in 2024, more than 30 states have joined the compact, and once operational later this year, social workers will have the option for licensure reciprocity in other states in order to maintain continuity of services for clients who move.

[00:58:04] Madam President, as they celebrate their 50th anniversary, I ask that you offer the warm welcome of the Senate to this amazing group of service providers including someone who I met in the 1990s and just remet today so and constituents thank you thank you senator for that introduction and welcome to the Greater Washington Society of clinical social workers I had the distinct opportunity to meet with the group as well this morning and we know we are still working to ensure that the interstate compact is active and strong for Virginia so that

[00:58:41] we can continue the critical work of providing the services to so many of our community members. Thank you so much for all that you do. Senators, I ask that we give the warm welcome of the Senate to the Greater Washington Society of Clinical Social Workers. The chair recognizes the senator from Hanover.

[00:59:07] Senator. Thank you, Madam President. Madam President, I rise for introduction. Senator has the floor. Madam President, today we have a group of individuals from Leadership Hanover. They are from the Hanover Chamber of Commerce and represent a wide diversity of businesses.

[00:59:24] They are here to watch our legislative process as they go through the Leadership Hanover program. If you could give them the warm welcome of the Senate and thank them for what they do for our community. Thank you, Senator, for that introduction, and welcome to Leadership Hanover, to the representatives from the Hanover Chamber.

[00:59:43] Thank you for joining us, and thank you for making sure that the issues and priorities of Hanover County are fairly and well represented as you speak to our lawmakers throughout the day today. Senators, I ask that we give the warm welcome of the Senate to Leadership Hanover.

[01:00:02] The chair recognizes the senator from Prince Edward. Thank you, Madam President. I rise for an introduction.

[01:00:17] Senator has the floor. Madam President, I'd like to welcome the Powhatan Leadership Institute. If they're in the gallery, if they would rise. PLI is a non-profit, volunteer-based organization that has helped over 700 residents become more informed and more engaged civic leaders.

[01:00:35] their programs assist in the development of insights into the various systems essential for community development including county governance municipal services natural resources local businesses and civic organizations ask my colleagues to join me in honoring the 2026 class of PLI with a warm Senate welcome thank you senator for that introduction and welcome to the 2026 class of Powhatan Leadership Institute I know it is such an amazing opportunity to learn about all the ways in which local and state government impact our

[01:01:09] communities. I'm sure you're not only learning quite a bit but you yourself through your experience and expertise are sharing with each other all of your own knowledge. So thank you for joining us today in the Senate gallery. Senators, I ask that we give the warm welcome of the Senate to the cohort of Powhatan Leadership Institute. Is there any other business to come in the morning hour? The

[01:01:48] clerk will call the calendar. Senate calendar for Tuesday, February 10th, 2026. Uncontested calendar, Senate bills on third reading. The chair recognizes the senator from Eastern Fairfax. Madam President, I move the Senate bills on third reading, uncontested calendar on pages 2 through 9. Senate bill 642 to 801 be placed in their final passage in a block. Any senator desiring to move a bill from the block should do so after the clerk has read the number of the bill. The question is, shall the

[01:02:26] Senate bills on the uncontested calendar, third reading, pages two through nine, Senate Bill 642 through Senate Bill 801, be placed on their final passage in the block with the understanding that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill. All in favor of that motion will say aye. Any opposed? No, the ayes have it.

[01:02:51] the motion is agreed to. The bills are before us in the block. The clerk will read the number of the bills. Senate Bill 642, Senate Bill 85, Senate Bill 178, Senate Bill 203, Senate Bill 239, Senate Bill 264, Senate Bill 282, Senate Bill 331, Senate Bill 379, Senate Bill 418,

[01:03:25] Senate Bill 421, Senate Bill 429, Senate Bill 529, Senate Bill 535, Senate Bill 605, Senate Bill 641, Senate Bill 656, Senate Bill 677, Senate Bill 692, Senate Bill 724, Senate Bill 801.

[01:03:56] The question is, shall the bills in the block pass? All in favor of the passage of the bills will record their votes aye. Those opposed no, are the senators ready to vote? Have all the senators voted?

[01:04:12] Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The bills in the block pass. Regular calendar, Senate bills on third reading. Senate Bill 348, a bill relating to storage of firearms in residence in where a minor or person prohibited from possessing a firearm is present.

[01:04:38] The chair recognizes the senator from Northern Fairfax. Thank you, Madam President. Can that bill go by for the day, please? Without objection, Senate Bill 348 goes by for the day. Senate Bill 115, a bill relating to handgun permits, reciprocity with other states.

[01:05:00] The chair recognizes the senator from Western Fairfax. Madam President, I move the bill pass in speaking to that motion. Senator has the floor. Thank you, Madam President. This bill repeals the blanket concealed carry reciprocity and requires that the Virginia State Police keep a registry of other states whose concealed carry laws meet the requirements or are equal to those of the Commonwealth.

[01:05:31] And with that, I move passage. The chair recognizes the senator from Roanoke. Madam President, speaking briefly to the bill. Senator has the floor.

[01:05:46] Thank you, Madam President. When I was elected, one of the issues that was so important to so many of the constituents that I represented close to the North Carolina line was that we increased reciprocity with other states. And this was something that they were concerned a great deal about.

[01:06:04] Between my election and the day I took the oath, Our then Attorney General Mark Herring severed relationships that we had with reciprocity agreements with several other states. And we worked here, the senator from Spotsylvania at the time, now the senator from Orange, and Governor Terry McAuliffe worked very closely with a wide assortment of stakeholders to fix this and to make sure that we were able to maintain these reciprocity agreements.

[01:06:32] And they actually came out with something that increased the number of reciprocity agreements during the McAuliffe administration. And this was a bipartisan consensus. And it's very disappointing to see the fraying of that bipartisan consensus that we achieved under the McAuliffe administration by this bill.

[01:06:50] Thank you, Madam President. The chair recognizes the senator from Eastern Fairfax. Thank you, Madam President. Speaking to the bill. Senator has the floor. Thank you, Madam President. I also remember being here that year, and I remember the compromise that was struck.

[01:07:10] I also remember voting against it. There was no question there was some bipartisan support. I think at the time, Governor McAuliffe said that we had not been able to pass a single bill forwarding the cause of gun violence prevention in, I think, over a decade.

[01:07:28] And at that point, I think the governor was pretty desperate to get something, anything, done. And thanks to Attorney General Herring's opinion, it created an opportunity where folks on the other side were finally willing to come to the table to actually have a conversation about doing something because they were so upset about what happened with concealed weapon permit reciprocity.

[01:07:50] I just want to remind everybody what you're voting for when you vote for this bill because if you would like for any state and their concealed weapon permit to be able to give them reciprocity in Virginia, you're basically voting to allow anybody who's got a pulse and doesn't have a felony and can pay a few dollars to Texas to be able to carry a concealed weapon anywhere in the Commonwealth of Virginia.

[01:08:16] even if they don't meet any of the, what we now have 20 different disqualifications under Virginia law for concealed weapon permit. And so basically what you're voting for, if you go red on this, so we're crystal clear, is you're saying that somebody who's been found incompetent, who's mentally ill, incompetent, had to be institutionalized, ought to be eligible to get a concealed weapon permit.

[01:08:45] You're voting for somebody who has a protective order, restraining order issued against them should be able to get a concealed weapon permit. You're voting for people who have been prohibited by law from possessing or transporting firearms in some circumstances to get a concealed weapon permit. You're voting for people who have been convicted of two or more misdemeanors within a five-year period preceding the application to get a concealed weapon permit. You're voting for people who have been convicted who is addicted to or an unlawful user or distributor of drugs to get a concealed weapon permit you're voting for people who are who have been found guilty of public drunkenness or habitual drunkenness to get a concealed weapon

[01:09:25] permit by the way you're also voting for people who are undocumented to get a concealed weapon permit you're also voting for people been dishonorably discharged the United States military to get a concealed weapon permit because you can get almost almost anybody can get a concealed weapon permit in Texas it's just so we're clear if you vote red you're buying a whole lot of other things besides just reciprocity. I want to make sure the record's clear about that before we vote.

[01:09:52] Madam President. Senator. Would the Senator yield for a question? Which Senator? Eastern Fairfax or the patron? I'm sorry, the Senator from Eastern Fairfax. Oh yeah. Will the Senator yield?

[01:10:10] Madam President, I heard the gentleman say that if you were convicted of all these offenses and you voted against this, you'd be voting for those people to have a concealed carry permit. Does he mean a concealed carry permit in Virginia?

[01:10:27] Senator from Eastern Fairfax. Madam President, as I said, unless Texas has changed its law, which would really surprise me, in Texas, basically all you have to be is not a felon to have a pulse and to pay some money.

[01:10:45] And so you can go to Texas, get a concealment permit, even if you're out of state, and then you can bring that permit back to Virginia, back to your home, and you can use it in Virginia because you have reciprocity. Senator from King George. Madam President, I think that the answer was no.

[01:11:03] That he did not intend to say that people could get a concealed carry permit in Virginia. But I think what the gentleman is referencing is reciprocity. And I think that the reality of this is we give reciprocity with other states so that our citizens aren't speaking to it, I'm sorry, speaking to the bill.

[01:11:26] Senator has the floor. so that our citizens aren't arrested in other states. And I have brought this to the attention of the body before. There are a lot of constituents who live in Northern Virginia, for instance, who carry concealed weapons. And when they drive into North Carolina, they're subject to being arrested.

[01:11:47] And here's why. Because on our VSIN, we give Maryland and other states the ability to read our VSIN. And on VSEN, it says if you have a concealed carry permit or not. So the police and those other jurisdictions can check it.

[01:12:05] And if they do, and they pull you over and you do, they then arrest you and they take you to jail and hold you without bond. Now, these are your constituents, business owners in northern Virginia that have to cross over into Maryland or West Virginia. In some cases, it's North Carolina.

[01:12:23] And if we eliminate reciprocity, you're going to see a lot more of that. And that's the only purpose of a reciprocity bill, is so that our constituents, the citizens of Virginia, aren't arrested in other jurisdictions. It's not about somebody from Texas who drives through here occasionally.

[01:12:42] It is an absurd argument, quite frankly, Madam President. What this bill actually does is it's going to hurt Virginia citizens who leave Virginia and have a concealed carry permit, they are subject to being arrested by the police in other states.

[01:12:58] And I hope we vote against this. The chair recognizes the senator from Orange. Thank you, Madam President. Speaking of the bill. Senator has the floor. Madam President, I get so tired of hearing fear-mongering from the other side on these sort of things.

[01:13:15] We spent an enormous amount of time where I really got to know Governor McAuliffe and where he was and how he did believe in the Constitution when 420,000 concealed carry permit holders in Virginia were about to lose their ability to maintain their Second Amendment and we did a lot of work.

[01:13:33] And part of the compromise on that bill was that we were going to make some headway on domestic violence. And I think we did a good job on that. If you were convicted of domestic violence and had a permanent protective order issued against you you would have the opportunity to have legal counsel and be adjudicated in a court of law and we also made progress with regard to the gun show loophole that used to hang out there when these gun shows would happen so it it was a two-for-one with regard to the Democrats getting two bills and

[01:14:08] we got one bill but we haven't had a whole lot of problems and this is a problem or this is a solution looking for a problem I want to thank the senators from Stafford and from Roanoke both for articulating it and I don't think we should vote for this bill. The chair recognizes the senator from Western Fairfax. Thank you madam president. I too remember the agreement speaking to the bill. Senator has the floor. Thank you madam president. I too remember the agreement that was made long ago and not everybody agreed that

[01:14:44] that was a good bipartisan agreement. And some of the people that didn't agree that this was a good agreement were actually my constituents. In fact, I stand here before you today because they did not

think that this was a good deal for the 36th district.

[01:15:06] So I think our question here today is really about does the work we do here matter? Do the laws we pass here matter? Are the safety standards that we have decided our constituents should follow matter?

[01:15:25] And if they don't, then we should let anyone and everyone conceal carry from anywhere, whether states have any standards or whether they pass these out like tic tacs. And if they do, then we should vote for this bill. So with that, I move passage.

[01:15:44] The question is, shall Senate Bill 115 pass? All in favor of that motion will record their votes aye. All opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:16:00] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. Senate Bill 115 passes. Senate Bill 29, the budget bill, amends and reenacts Chapter 725 of the Acts of Assembly of 2025, which appropriates the public revenues for two years ending respectively on June the 30th, 2025 and June the 30th, 2026.

[01:16:28] Senator from Eastern Fairfax. Thank you, Madam President. I would move to suspend the rules and grant the privileges of the floor to the Senate Finance Committee staff for this bill. The question is, shall the rules be suspended and the privileges of the floor granted to the Committee for Senate Finance and Appropriations. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0.

[01:17:07] Ayes 40, noes 0. The rules are suspended and the privileges of the floor are granted to Senate Finance and Appropriation staff.

[01:17:38] The chair recognizes the senator from Portsmouth. Thank you Madam President. Madam President, I move that the bill pass and speak into the bill. Senator has the floor. Madam President, I have previously spoken about redistricting.

[01:17:53] Am I support of the mats? Am I support for the bonuses for teachers and state employees to be $1,500? The amendments also conform us to provisions of federal tax law. taxpayers can file state taxes without a delay. Madam President, I reiterate my motion that the bill pass. The chair recognizes the senator from Hanover. Thank you, Madam President. Madam President, would the senator from Portsmouth yield for a question? Will the senator yield? Madam President, I yield. Senator from Hanover has the floor. Thank you, Madam President. Madam President,

[01:18:30] appreciate the senator from Portsmouth yielding and I appreciate her comments about things that that we probably all agree about in this budget, like the bonuses for our state employees. But I'd ask the Senator, as I'm looking at the redistricting amendment, there are multiple enactment codes.

[01:18:54] I think there are 11. Ask to draw our attention to enactment number four, that the provisions of Virginia Code Section 24.2-3.04 are not applicable to the new congressional districts listed up before, if she's aware of that code section or that change with the enactment.

[01:19:20] Senator from Portsmouth. Madam President, I will yield to the senior citizen from that too, from Fairfax. Senator from Eastern Fairfax has the floor.

[01:19:36] Thank you, Madam President. I was trying to pull up the bill while we're sitting here, but from the way you described it, I think that's the enactment clause that says that the redistricting criteria code section does not apply to this bill, I think is probably what you're referring to.

[01:19:52] Is that right? Madam President. Senator from Hanover. Madam President, answer the senator, yes. The code section that says standards and criteria for congressional and state legislative districts and reads that every congressional district shall be constituted so as to adhere to the following criteria it appears to me that enactment code number four repeals that from January 1st 2025 so I guess that was almost a month ago up through October

[01:20:29] of 2030. Senator from Eastern Fairfax. And Madam President I would say it doesn't repeal it it simply says it doesn't apply to any redistricting that occurs during that period of time does the senator from Hanover have another question madam president I've asked the gentleman does the senator yield senator from Hanover I'm president asked the gentleman if the rest of the bill

[01:21:04] actually set to create congressional districts at some point in time between July 1st 2025 and October 31st 2030. Senator from Eastern Fairfax. Madam President I believe the bill redraws congressional districts believe on a successful constitutional amendment passing in April is my recollection. So

[01:21:41] yes temporarily it redraws congressional districts assuming the voters approve the amendment constitutional amendment on April the 19th. Does the senator have another question. Yes, Madam President. Does the senator continue to yield? Will the senator yield?

[01:21:59] Senator from Hanover. Madam President, so I'd ask the gentleman, so for these congressional districts that are being drawn for a constitutional amendment vote that's to happen in the future, it is suspending or not making applicable or repealing for that time frame these standards for to constitute these new congressional districts. Is that accurate? Senator from Eastern Fairfax. It repeals, Madam President, I would say that the budget bill, the caboose bill in front of us, suspends the criteria for drawing

[01:22:37] districts that was put in place for the Bipartisan Redistricting Commission to use when drawing seats and the Bipartisan Commission is not drawing these seats and so the only criteria that applies are the criteria in the Constitution. Madam President, would the gentleman yield for additional question?

[01:22:54] Will the Senator from Eastern Fairfax yield? I'll yield. Senator from Hanover. President, so to be clear, does that mean that the standard that's laid out in the code currently, that congressional districts should be drawn to ensure racial and language minorities have an equal opportunity to participate in the political process and shall not dilute or diminish their ability to elect candidates of their choice, either alone or in correlation with others, that code section is not applicable to the new districts.

[01:23:33] Senator from Eastern Fairfax. Madam President, I don't have the code section up in front of me. My recollection is that might be in there, but I would say to the senator that the Constitution requires districts to be drawn of compact and contiguous territory, and there are certain federal laws that apply right now which accomplish many of the objectives that the senator just pointed out.

[01:23:59] However, I would point out that the U.S. Supreme Court is very hostile to those concepts in a lot of ways, has recently said that some of those things, I think, are not supposed to predominate in drawing the seats. And there's also a case pending right now from Louisiana in which the oral argument that occurred in front of the Supreme Court a few months ago indicated that Section 2 of the Voting Rights Act is very much in jeopardy.

[01:24:21] And so the law in that area is a little bit in flux, I would say. But in general, there are other rules that apply to this besides what we had in code that we're talking about. Does the senator yield for additional question?

[01:24:39] Senator from Eastern Fairfax, will you yield? Sure, I yield. Didn't know I was debating this today, but I'll yield again. Senator from Hanover. Madam President, does the senator concede that we're also not going to have to apply to the item number five for congressional districts, that they should not be drawn, that the districts must be drawn to preserve communities of interest, and that is no longer a requirement since we're not having to adhere to that section.

[01:25:09] - Senator from Eastern Fairfax has the floor. - Madam President, I'm still trying to pull up the code section, but assuming for the sake of argument that that's not in the code section, that that's in the code section, the code section obviously would not apply because it's being suspended.

[01:25:26] But I would point out to the gentleman that the Constitution requires districts be drawn of compact and contiguous territory and compactness obviously implies some element that communities of interest exist and I would also suggest that when you look at the at least the former rulings of the Supreme Court of the United States when it comes to the standards under the Voting Rights Act and making sure that communities be certain communities be able to elect candidates of their choice there is some consideration of that element under the

[01:26:03] existing federal standards regardless of what we want to put in the Code of Virginia. Madam President, would the senator yield for additional question? Senator from Eastern Fairfax, will you yield? Sure. Senator yields. Senator from Hanover. Madam President, in light of that answer one of the other sections that's being repealed if this is to pass would be that congressional districts would no longer have to adhere to being drawn in accordance with the Constitution of the United States, including the Equal Protection Clause of the Fourteenth Amendment, the Constitution of Virginia, federal and state laws, including the

[01:26:41] Voting Rights Act of 1965 as amended, and the judicial decisions relating to racial and ethnic fairness. So since that's being repealed, what requirement is there that these districts comply with that language? Senator from Eastern Fairfax. Madam President, the senator like me is an attorney and went to law school and he surely well knows that we can't suspend the United States Constitution in this chamber nor the Constitution of Virginia, although maybe the President Trump thinks we can, but most of us think the rule of law still

[01:27:19] and we can't also supersede federal law these are things that all apply to us regardless of what's in code and by the way we're not repealing anything we're simply suspending the statute for any redistricting that occurs between I forget what the dates are and I think October 30th of this year I think is what the senator cited to in the language for additional question senator from Eastern Fairfax will you yield sure the senator yields senator from Hanover. Madam President, I'd ask the gentleman if this code section is to be approved would it not also mean that the congressional districts would not have

[01:27:59] to be drawn to adhere to prohibiting favoring or disfavoring any political party? There would be no requirement that that in place if this code section is repealed. Senator from Eastern Fairfax. Madam President, I would I would agree with the senator that the language that's contained in code which specifically talks about that would be suspended through october 30th however i i think that um given the way certain demographic

[01:28:36] groups vote today or the voting patterns that we see especially in light of the man across the river and who seems to continue to be reconsolidating the former base of the democratic party with his behavior some people might view federal law as currently requiring you know partisan interests given the way certain minority subgroups are voting but but explicitly in the code of Virginia no that would be suspended I'm present with senator yield for additional question well the senator from Eastern Fairfax

[01:29:13] yield sure the senator yields senator from Hanover thank you madam president But, Madam President, would the Senator be willing to grace us with his constitutional theory of how the Constitution prescribes that districts should be created by a non-partisan redistricting committee for these congressional seats, that we are now drawing them in this bill when that is still in the Constitution of Virginia today?

[01:29:42] Senator from Eastern Fairfax. Madam President, the constitutional amendment which was passed earlier by this chamber and placed on the ballot by prior legislation which is currently pending before the voters would allow the voters to authorize a temporary response to what other states are doing to us by redrawing our seats.

[01:30:09] And that's what the constitutional amendment does and if the voters vote to allow us to do that then the general assembly will have that power madam president speaking to the bill senator has the floor madam president i think the senator's last statement indicates one of the fatal flaws of this legislation if the citizens of virginia at some point in time in the future and i think the the date even though we've not seen a writ of election from the governor would be april 21st If they change the Constitution, then it would give us the ability to redraw districts.

[01:30:47] But Madam President, this amendment redraws districts today. Not some, the Constitution has not changed. We haven't even voted on it. The Governor hasn't even issued the writ of election. Madam President, this bill is, this amendment is more nefarious and impactful.

[01:31:11] It goes through the items that we have decided are important. Items like making sure that communities of interest are preserved, making sure the Voting Rights Act of 1965 are complied with, making sure that racial and language minorities have equal opportunity to participate, making sure that contiguous territory are kept together, making sure that compact territory is created through districts,

[01:31:44] and then making sure that the districts do not unduly favor or disfavor a political party. So as we go through this process, all those things with your vote today, you're saying that you're suspending that, you can call it not repealing it, we're only suspending it for five years.

[01:32:05] That in my book means it's not happening for the next five years. And any districts drawn during that time will not have to comply with those provisions that are currently in the law. Madam President, additionally, this draws the districts before Virginians have even had the opportunity to vote. The Constitution today, today, says that we're going to follow these things.

[01:32:34] We're going to keep communities of interest together. We're going to make sure that the congressional districts are compact. We're going to make sure that the congressional districts Do not unduly favor or disfavor any political party. And I'll remind you that the current congressional districts were drawn by our Virginia Supreme Court.

[01:32:56] The individuals on the court came together and crafted these districts. Madam President, even though there are a number of items in the budget part of this, like raises or bonuses for our state and local

employees, bonuses for our teachers, Those are things we can come together in a bipartisan nature.

[01:33:22] Certainly, those were ones that were introduced by former Governor Youngkin, and I assume are going to be supported by our current Governor Spanberger. We could all come together in a bipartisan direction, but this bill is not about that.

[01:33:40] It's not about those things. This bill is about the partisan gerrymandering, a political power grab, The same things that people argue against, that they are so offended from other parts of our country, are what they are doing here.

[01:33:57] In Virginia, we've set up a standard, a test. Because as we've talked about this, Republicans and Democrats, going back to Henry and Madison, have been guilty of gerrymandering. They've done it.

[01:34:12] And we said, Virginians said, and they already voted, we don't want to do it anymore. So now we're going to undo the districts and keep moving on. Madam President, I hope that at some point, because this is a budget bill, remind any single member, any single friend across the aisle, can say I'm not supporting this.

[01:34:39] Any individual won, because it takes 21 votes to pass. So every individual can make that decision. I would hope that we would not be suspending, or repealing, or just not following these provisions that make Virginia a better place.

[01:35:08] The Chair recognizes the Senator from Eastern Fairfax. Thank you, Madam President. Speaking to the bill. Senator has the floor. Thank you, Madam President. I just wanted to just clear up the record a little bit. First of all, while the Senator was, and again, I didn't come here prepared to debate this today, so I hadn't gone back and reviewed a lot of this stuff.

[01:35:30] But I just went out and pulled section 6 of Article 2 of the Constitution of Virginia, which has to do with apportionment. And I just want to note for the body, not only does the Constitution require districts to be composed of compact and contiguous territory, however, the Constitution also says they shall be constituted to give as nearly as practical representation in proportion of the population of districts.

[01:35:50] The proportionality is also required. In addition, it says districts have to be drawn in accordance with the requirements of federal and state laws that address racial and ethnic fairness, including the Equal Protection clause the 14th amendment of the constitution and provisions the voting rights act 1965 is amended and judicial decisions interpreting those laws it also says specifically districts shall provide repracticable opportunities for racial and ethnic communities to elect candidates of their choice and that's in the constitution so regardless of the law that's being suspended all of that remains the law in the commonwealth of virginia in addition to federal law which we already talked about a little bit i just think it's important to cite that in addition to that um madam president

[01:36:29] i heard the um minority leader talk a bit about how voters are being given the maps before they vote and yeah they are that's intentional so voters know what they're voting for and if we didn't put out the maps before the vote you ought to be arguing that we're giving ourselves a blank check to do whatever we want we thought it's important in the interest of transparency to show voters exactly what they're going to vote for so they can make a fully informed decision when deciding how to respond to what these other states are doing to us and what it what's happening madam president is that the president of the united states who apparently

[01:37:09] only one half of this chamber knows how to stand up to we've already heard about that yesterday and the day before and we're going to hear about it again and again again this session has basically directed people in other states to grab power to basically maintain his power indefinitely to rig the game to rig the system look what's happened in texas where they're trying to steal four or five congressional seats in missouri in north carolina where they stole three in ohio where they stole one we have a special session set for florida the week i think after the vote is scheduled on this where ron desantis in florida in florida plans to steal another four

[01:37:43] congressional seats to try to rig the game and rig the map so that trump can remain in power unchecked by any branch of government for the rest of his term madam president you know what i don't I don't think a lot of Virginians like that. A lot of Virginians don't like the fact that the President of the United States has basically tried to transfer federal agencies out of state.

[01:38:06] That he's basically unilaterally fired tens and tens and tens of thousands of Virginians from their jobs. That he's basically trying to steal our grants. Look the grants that he stole out of Hampton Roads for all the wind projects we had down there. And tried to shut down an $11 billion wind program, which would have cost Virginians, households, hundreds of thousands of dollars to have a wind project can't generate wind because Trump has some weird weird fetish about wind which nobody seems to understand and just lately he threatened to steal our elections the Constitution United States specifically says that elections in

[01:38:44] America are run by the states it's explicit in our Constitution and he's talking about having federalizing elections and stealing elections and putting federal officers at elections and I mean this is unconstitutional I heard a peep out of the other side about all the attacks on democracy and you want to why Virginians are so fed up and they think that we need to have a measured temporary response is to check this power because nobody will speak up to him who's in his party it's time madam president that we we fight back we do something because when we signed up to this Constitution in 1787 as the

[01:39:22] largest state in America we had 20% of the population of America in Virginia we didn't sign up for some deal that allowed the other states to pick our pockets and to run us over whenever they felt like it. We signed a contract with them. It's called the Constitution of the United States of America, and it didn't contemplate redrawing Congress in a way to basically deny us a voice at the federal level. And if voters choose to pass this, it will give them a voice, and it'll give a check and balance, and it'll get things in D.C. under control so Virginia doesn't keep getting the short end of the stick. I hope we can pass this.

[01:39:53] The chair recognizes the senator from Lynchburg. Thank you, Madam President. I want to see if the gentleman from Eastern Fairfax will yield for a question. Senator from Eastern Fairfax, will you yield? I'll yield for another question on a bill I didn't plan to debate today. Senator from Lynchburg. Thank you, Mayor President. To the Senator, if we pass this bill today, which I suspect we're going to, and it gets signed into law by the governor,

[01:40:26] does that mean, and when it goes to vote to the people in April, if the citizens approve this, Does that mean that these districts cannot be changed before the November election? Senator from Eastern Fairfax. Madam President, I would say to the Senator, I think that would be virtually impossible given the timeframes associated with, let me put it this way, it would be legally very difficult and it would also be practically impossible because of the logistics associated with

[01:41:06] changing districts during election process the way our the way our voting systems work the way federal law works about changing district line you can't change district lines once an elections began once voting started i just don't think practically there's any practical way to do that after april 19th so i would say no it's impossible thank you that that is all i had for the all the questions i have for the gentleman speaking to the bill senator has the floor madam president

[01:41:36] You mentioned earlier that you grew up in Georgia, so you might be familiar with this deceased country artist named Vern Gosden. He was known as The Voice, and he had a great country song back in the 80s, 90s.

[01:41:53] It was called, If You're Gonna Do Me Wrong, Do It Right. And what y'all are doing is not doing it right. And the many ways that you are not doing it right, look at the mental gymnastics.

[01:42:09] Look at the things that y'all have had to do in the past several months to get to this point, to gerrymander our congressional districts. First of all, we have rules in the General Assembly when you have a special session.

[01:42:29] It's called for one purpose, or it might be called for one purpose or more purposes. We had one called for the budget. And under the rules of the General Assembly, what do we do? You come for that purpose. And if you're going to change the purpose, you're supposed to have a two-thirds vote, four-fifths, whatever, somebody knows the rules better than I do.

[01:42:48] But we didn't have that vote. Instead, we changed the purpose. So we violated our rules from the very beginning to get here in this special session. And then when we got here, we had to pass something to revoke a law from the 1970s because y'all didn't pass or didn't post any of this 90 days before the election.

[01:43:10] And I tell you that the president called for the mid-decade redistricting, which a number of us have denounced. I think the senator from Rockingham said it was a terrible idea. I know Delegate Lee Ware said it was a terrible idea. I know I said back in October that mid-decade redistricting is a terrible idea.

[01:43:29] I wish Texas had not done it, but just because Texas has embarked on a bad deal doesn't mean that we should. So we didn't have the 90 days posting. And so now we're retroactively repealing the statutes that the senator from Hanover just went over with the senator from Eastern Fairfax.

[01:43:50] All of those things that we are now ignoring. And for the first time that I'm aware of, we are engaging in a partisan gerrymander of congressional districts, not by statute bill or anything, but in the caboose budget amendment.

[01:44:09] The extraordinary steps that this body is going through along with the House and along with the governor who said this whole session was going to be about affordability for the citizens of the Commonwealth of Virginia has been nothing but an attempt to gerrymander our congressional districts to go from a 6 to 5 representation to go from a 10 to 1 representation.

[01:44:41] The very first bill that was signed in this session was a partisan gerrymander, nothing to do with affordability, and I'm still waiting to see the first affordability bill passed by either chamber.

[01:44:52] This is a disservice to our citizens. It's shameful. And I think, I hope that when the citizens see what has been done by this General Assembly to circumvent what they passed just five years ago by a two-

thirds majority, to do away with exactly what y'all are trying to do to them today, that they will defeat this bill.

[01:45:22] I ask people to please vote against this budget 29 caboose bill that contains a partisan gerrymander for our 11 congressional districts. Thank you, Madam President. The chair recognizes the senator from King George.

[01:45:38] Thank you, Madam President. I rise to speak to the bill. Senator has the floor. Madam President, I listened to the senator from Eastern Fairfax, and I heard a lot about the president of the United States, and then I heard a restitution on the Constitution. He's not here anymore.

[01:45:54] But what I did not hear is why we are eliminating all of these protections for the citizens of Virginia with regard to the voting districts.

[01:46:10] And so the senator from Eastern Fairfax said he was doing all this to stop the president so the Virginians don't get the short end of the stick. Well, let me tell you, if you pass this, Virginians are going to get the short end of the stick. And I want to be clear. The senator from Hanover went through this and questioned him, but let's look at what's being eliminated.

[01:46:33] And what I mean is you are voting to remove these protections for the citizens of Virginia and these communities. Districts shall be constituted so as to give nearly as practicable representation in proportion to the population of the district.

[01:46:53] You're eliminating that. Districts shall be drawn in accordance with the requirements of the Constitution of the United States, including the Equal Protection Clause of the 14th Amendment and the Constitution of Virginia, federal and state laws, including the Federal Voting Rights Act of 1965, and relevant judicial decisions regarding ethnic and racial fairness.

[01:47:20] You are eliminating that. No district shall be drawn that results in denial or abridgment of the right of any citizen to vote on account of race or color or membership in a language minority group. You are eliminating that. You're eliminating the provision that says you can't draw a district to suit a particular politician. Districts shall be drawn to give racial and language minorities an equal opportunity to participate in the political process and shall

[01:47:57] not dilute or diminish their ability to elect candidates of choice either alone or in coalition with others. You are eliminating that provision and I assume that they've just said oh trust us it'll be okay. It might not be okay. Districts shall be drawn to preserve communities of common interest. That's being eliminated. Districts shall be comprised of contiguous territory with no district contiguous only by connections by water

[01:48:31] running downstream or upriver. So it's okay now if you have to buy a boat to get to one part of your district to the other because you're eliminating that provision. Shall be composed of compact territory and shall be drawn employing one or more standard measures for district compactness now as you've seen the map they run from Lord Bristol to Alexandria because that's being eliminated and districts shall not disfavor one political party over

[01:49:07] another and perhaps that's the most disheartening that is being eliminated and I understand I understand that I understand the rule of 21 I learned that when I was elected, and I get that. But just because you have the ability doesn't mean you should do it. And what concerns me is you eliminate all of

these protections for the voters of Virginia, you are disenfranchising the voters. And that is something that I've seen the party on the other side of the aisle fight for since I came here. And I'll repeat that. I've watched the party

[01:49:44] on the other side of the aisle, fight against disenfranchising voters since I came here. And now we are eliminating all those protections that you all fought so hard to put in for those folks. The chair recognizes the senior senator from Prince William.

[01:50:03] Thank you, Madam President, speaking to the bill. Senator has the floor. I wasn't planning to speak, but I think the senator from Eastern Fairfax has explained it fairly well in terms of what constitutional provisions and what state of the provisions have to be followed by both federal law or federal constitution and Virginia's constitution.

[01:50:24] However, Madam President, I do feel a little bit awkward that, you know, frankly, not a single member on that side of the aisle voted for 24.2304 carried by Senator McClellan, 717 in 2020 all the provisions that many just argued to defend not a single vote for not a single member on that side I got the voting record right here and so these are provisions that yes in fact we have been fighting for and yes are in

[01:51:02] our Constitution and yes are reflected and what's before you today and so you know I just want to set the record straight about what is going on all of a sudden those protectors of all the rights that all of them fought against and voted against so thank you madam president the chair recognizes the senator from Franklin County will the gentleman rise for a question which gentleman sir Jennifer from Prince William County please well the senator from senior senator from Prince William I yield for a question my president I'd

[01:51:41] ask the gentleman a simple question because he asserted that of course this whole code section suddenly appeared because of former now congressman mcclellan 24.2 304.04 but isn't it a fact we're really going to get into the facts of what wasn't voted for perhaps on this side as you claim was actually only subsection nine of 24.2 304.04 not the whole not the whole one through eight but just number nine paragraph number nine madam president which read the whole number of persons reported in the most recent federal decennial census by the United

[01:52:21] States Bureau of Sentence shall be the basis for determining district populations. Senator from Prince William. Madam President, I answered the gentleman that I believe he is incorrect in his reading and looking at the statute. It was an entirely new statute in 2020 under Senate Bill 717. Madam President, Senator from Franklin County. In fact, Madam President, this was where Senator, what is your motion?

[01:52:46] Will he yield? I'm sorry. He yielded for another question. Senator, will you yield? And in fact, Madam President, I would have asked the gentleman, that was actually the debate on whether we counted the incarcerated persons and where we counted them as a part of the census.

[01:53:03] That was Senator McClellan's bill. Was it not? Senator Prince William. I'd answer the gentleman, that was a part of it as a subsection of the bill. Madam President, will he yield for one final question?

[01:53:22] Will the Senator yield? Senator from Franklin County. In fact, Madam President, would he not agree with me that that's being repealed too, or at least held back during the time in which this constitutional amendment is in effect?

[01:53:37] Senator from Prince William. Madam President, I believe the question has been asked and answered in the previous Silicoile between the Senator from Hanover and the Senator from Eastern Fairfax, that it would be temporarily suspended. Speak to the bill. Senator has the floor.

[01:53:53] plan on standing up either but I got I've had about enough of this and I've had about enough of this because one an old friend of mine who I now have the honor of sitting in the Senate now sits there for 20 minutes and complains about the current condition in Washington DC and I remember a guy named Chuck Colgan a name Tommy Norman who all came to me and said right uniformly from the very beginning what goes on them there does not cross the Potomac River down into the Commonwealth of Virginia that we act on our own not at the behest of or in

[01:54:28] response to the federal government and what i'm hearing and hearing and hearing which is so distressful just to hear is how much we are preoccupied with the business of washington rather than the business of virginia to the point that it is crippling us to the point that it is now making us undo laws that we once heralded stood firm by said that's what makes virginia different now it's inconvenient we must get rid of it have to post this thing 90 days before the constitutional amendments considered by the body forget it forget it we'll just

[01:55:08] go back to 1971 and act like it never existed this is what we're doing to try to fit a square peg into a round hole that will do more damage to the Commonwealth of Virginia than we even know because if we can do this one time we'll do it two times we'll do it four times anytime we don't like something we'll create a temporary bill that suspends something we'll create something I stood up when we were here at redistricting and said I did not like what was going on in California Texas whatever but then you say none of you guys ever said you were

[01:55:47] against it but we did that I stood here right during that week before the election and said as we tell our children just because other people are doing it doesn't mean it's okay or good for us or for you we've gotten to the point now where we see a problem we try to go around it we have court ruling oh we need to correct it through legislation through panic legislation let me give you a number, Madam President, I would tell everybody in this chamber, let me give you a

[01:56:19] number. 41. 41. 4-1. The number of seats the Democrats picked up in 2018 in Congress. What are you afraid of? What, Madam President, would my friends on the other side of the aisle be so afraid of? That five-seat switch in Texas? Well, heck, that's been all canceled out in California.

[01:56:46] And when I hear that suddenly, because of what's happening in other states, Virginians' voices are being crippled in Congress and going unheard. It's a 6-5. We have 11 congressmen. They're all pretty great people, men and women.

[01:57:05] They're all very assertive in protecting the districts that they serve. I have never once thought that our voices have been diminished, even though we only have 11. California's got like a bajillion. Not once.

[01:57:22] And it won't be diluted no matter what happens in Texas or California or somewhere else. You're acting like, Madam President, that are congressmen and women digging the system. 10 to 1 does not reflect Virginia.

[01:57:40] 2119 does. 6-5 does. And just because there's a change in the apportionment or wherever the votes seem to, the seats seem to rise or fall in California and Texas doesn't mean our voices are diluted.

How can you even come to that conclusion?

[01:57:59] You know why you can come to that conclusion? Because you've got an agenda. Madam President, it's kind of like, to me, a jewelry store smashing crap. I've represented clients that do that. Pop the top, grab all the jewels until the lights go on and the alarms go off. Strike while the iron is hot.

[01:58:18] We're better than that. We, all of us, 40 of us, we're better than this. And as history has dictated before and will again, usually the party and power in the presidency does not do very well in the midterms.

[01:58:37] This appears to me, Madam President, to be putting not just the thumb on the scale, but the thumb, two feet, and the rear end of an elephant. We are better than this. Please don't.

[01:58:53] Thank you, Madam President. The chair recognizes the senior senator from Prince William. Thank you, Madam President. I just simply rise to correct a previous statement of the senator from Franklin's question to me, Madam President. Senator has the floor. Thank you very much.

[01:59:08] So the senator had asked me whether 2.2305.04 part nine was suspended, and I just draw the attention to the gentleman to enactment number five. So section number nine is actually covered and does apply under enactment number five.

[01:59:26] So I wanted to correct the record and ensure that the gentleman had the correct information. Thank you, Madam President. Madam President. For what purpose does the Senator from King George rise? Senator from Prince William yield for a question. Will the Senator from Prince William yield?

[01:59:45] Senator from King George. Madam President, I would ask the Senator, having established the fact that it was his side of the aisle that voted for that I would ask the gentleman why are you now eliminating all those protections for Virginians? Senator from Prince William.

[02:00:02] Madam President, the Center from Eastern Fairfax has already been asked by the Center from Hanover and answered by the Center from Eastern Fairfax. I'll take that as we have no answer, Madam President. Senator from Rockingham. Madam president speaking the bill senator has the floor you know what I looked in I

[02:00:37] would be tempted to look up hypocrisy and this bill has it that written all over it you know we talked about Virginia code section 24.2 304.04 providing protections for all kinds of classifications in Virginia whether based on common interests whether based on race whether based on geographic area and we're told you're not entitled to claim those protections you didn't

[02:01:14] propose that we did wasn't even that long ago and now you're turning your back on it section 6a of the Constitution redistricting commissions who proposed that wasn't somebody on this side it was that side of the aisle that proposed the redistricting Commission now we're turning our back on that that was then this is now you know I heard the argument that North Carolina Florida Texas they're stealing seats what's that say about what this efforts

[02:01:53] about it's about stealing seats it's not honorable it's not what we should be doing and it's not the way we should be doing it and I call on honorable Virginians to speak up. You know, there was a group that was at the forefront of this effort to get Section 6A of the Constitution adopted, and they were very proud of their bipartisan credentials. I think it was called One Vote One

[02:02:27] Virginia 2021, and they're now something called Upvote Virginia. Where are they? They need to get engaged. Otherwise, I would suggest that their whole effort is an exercise in hypocrisy they need to get engaged they need to get Virginians engaged because this is wrong and Virginians should stand up and say so the chair recognizes the senator from Stafford thank you madam president speaking to the bill senator has the floor I also did not plan to speak but

[02:03:05] I'm looking at this and you just you cannot take a look at this and think that this is a simple caboose bill it is clearly clearly a theft they're so desperate to bypass a bipartisan Commission they're trying to retroactively repeal state laws that's clear you miss deadlines this is not protecting us from national threats following some of the worst examples from Maryland from California even in that the own partisan allies have warned that this is kind of

[02:03:42] mid-decade meddling is a legal disaster and let's be honest about the competency argument we've been listening to people saying for years that the last year about what's happening across the river in dc but where was any conversation about the competency of the past administration none there's somebody who who was clearly demonstrated absolutely incompetent and that

[02:04:15] was only acknowledged until the last to the last minute and then you had an entire you had an entire half the country that was disenfranchised they had already made their own nomination and that was completely stepped aside that was just that's egregious the amount just how much people are being disenfranchised not only the commonwealth in the country is wrong it is absolutely we don't district based on what's happening when you're unhappy with how something goes that's what elections are for and as my colleague said what are you afraid of let this let this play out

[02:04:54] naturally in the elections but you do not disenfranchise the entire half of the commonwealth and you look at these these districts they're they're absolutely the worst jam you see in the entire country how much fairfax and snakes down how much you're going to silence an entire composition from the rural parts that's i've never seen anything so it absolutely disappointing and i'm gravely worried about where the direction we're going if we were followed this kind of of path there are other states that have made these decisions that's been talked about but you

[02:05:32] forget to talk about some of the others like california or maryland this is not representing the state that we were elected to the commonwealth i hope everyone really wakes up and says this is not okay and votes no seeing no other senators who wish to speak the question is shall senate bill 29 pass all in favor of that motion will record their votes aye those opposed no are the

[02:06:07] senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll i was 21 nose 19 the senate will be in order eyes 21 nose 19 senate

[02:06:32] bill 29 passes the senate bill will the senate will be at ease senate bill 273 a bill relating

[02:07:26] to virginia residential landlord and tenant act eviction diversion program eligibility the chair recognizes the senator from hampton thank you madam president i move the senate bill 273 pass and speak into the motion senator has the floor thank you madam president in 2019 the virginia General Assembly established a pilot program to try to reduce evictions among low-income Virginians who were taken to court by non-payment of rent. This program was called the eviction diversion pilot program and the program was made permanent in 2025 so that any locality in the state could

[02:08:03] implement it. What this bill does is to reform the eviction diversion program so that more tenants can take advantage of it and use the benefit and any jurisdiction can implement it so i again i move the senate bill 273 pass the question is shall senate bill 273 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators

[02:08:32] voted do any senators desire to change their vote the clerk will close the roll ayes 31 knows none ayes 31 nose 9 senate bill 273 passes senate bill 294 a bill relating to virginia residential landlord and tenant act tenant records sub metering energy allocation and ratio utility billing systems the chair recognizes the senator from eastern henrico thank you so much madam

[02:09:07] president i move we pass the bill and speak into that motion senator has the floor thank you madam president this legislation simply allows for tenants that are facing eviction as a result of non-payment of utility costs to be provided with a copy of a ledger of those expenses debits and credits from the landlord so i'm hoping that we can make sure that we provide transparent information for individuals that might be falling on hard times and unable to afford maybe some things and pass this legislation forward the question is shall senate bill 294 pass all in

[02:09:42] favor of that motion will record their votes i those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 noes 19 ayes 21 nose 19 senate bill 294 passes senate bill 313 a bill relating to virginia residential landlord and tenant act prohibited provisions fees for maintenance and periodic payments the chair recognizes the senator from

[02:10:20] Alexandria. Thank you, Madam President. I move the bill pass. I'm speaking to the bill. Senator has the floor. This bill is pretty simple and I would hope it could be bipartisan. Under current law, landlords are only required to offer tenants one fee-free way to pay rent while retaining the power to limit all other payment methods and they can often engage in extra charges like if they bring multiple money orders to pay their rent, they're charged each time they bring a money order that adds up to the total of the rent in some cases for tenants living in tight budgets these fees can create serious financial strain sometimes forcing them to choose between paying rent or covering

[02:10:58] basic necessities this allows a landlord though to pass on any out-of-pocket fees to tenants that they incur if they process a credit card debit card or other electronic payment method it just doesn't allow the fees to be arbitrary and unreasonable um this bill would allow um Also, the other important part of the bill is there's no charge for, they can't be charged for maintenance fees, like if a tenant's appliance breaks through no fault of the tenant's own, unless it's their fault, they don't have to pay for it.

[02:11:34] So, this is supported not just by the Southern Poverty Law Center, but the Apartment and Office Building Association, the Realtors, they're all consulted in language, there are no stakeholders, no witnesses who spoke against the bill, just a simple way to make sure that you pay your rent without incurring extra fees, and that if an appliance breaks, that an unscrupulous landlord can't charge you for that. Thank you. I move the bill pass.

[02:11:59] The question is, shall Senate Bill 313 pass? All in favor of that motion will record their votes aye. Those opposed no, are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[02:12:15] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. Senate Bill 313 passes. Senate Bill 332, a bill to direct the Department of Health to convene a work group To develop policies for the safe administration of medical marijuana to terminally Terminally ill patients the chair recognizes the senator from Arlington. Thank you madam president. Madam President I move that the bill pass and speaking to that motion senator has the floor Well, thank you. What this bill would do is once the federal government moves cannabis from a schedule

[02:12:55] One to a schedule three category and the Department of Health issues regulations after those two steps then Hospitals would be permitted to provide Cannabis oil to patients under the direction of course of a medical team And cannabis oil is already available Again under the direction of a medical team at our nursing homes and in hospice cannabis oil has been effective in ameliorating some severe pain and also

[02:13:31] helping with nausea and appetite loss so this bill has a couple guardrails in it and we're merely trying to treat patients and hospitals the give them the same options as we've currently giving patients in nursing homes and in hospice so I do hope it is the will of the body to pass this bill thank you Madam President the question is shall Senate bill 332 pass all in favor of that motion will record their votes aye those opposed No, are the senators ready to vote have all the senators voted do any senators desire to change their vote?

[02:14:08] The clerk will close the roll ayes 39 noes 1 ayes 39 noes 1 Senate bill 332 passes Senate bill 373 a bill relating to Virginia residential landlord and tenant act compliance as defense to action or possession for nonpayment of rent.

[02:14:29] The chair recognizes the senator from Northern Fairfax. Thank you, Madam President. I move the bill pass as amended and speaking to the bill. Senator has the floor. Thank you, Madam President. You know, as we have been addressing issues around affordability here in Virginia, we've done a lot around ownership and making it more affordable to buy a home.

[02:14:49] This bill specifically addresses people who live in rental units when the landlord does not do what, you know, live up to their side of the bargain. We're talking about landlords who will not make repairs that have to do with the health and safety of living in that apartment.

[02:15:09] And so what my bill does, currently my understanding is that when a tenant stops paying their rent and has to go before the court to be evicted they have no right to bring their case forward to say well there's raw sewage in my bathtub for the past six months for instance this bill simply allows the tenant who is being sued for non-payment to put on as a defense evidence that their landlord has violated the lease it does it eliminates the requirement for paying into an escrow but it does

[02:15:49] we did pass an amendment yesterday that says nothing in the section shall alter the right of the landlord to request at trial you know amend the amount at trial based on all amounts due including ongoing rent we have worked with the realtors and found common ground and as someone who as a kid lived in a home that was not up to standards where things were the floor was a had a hole in it I think this is an important bill to give our tenants the right to protect themselves and to hold their landlords accountable when they're not doing the right thing and I move

[02:16:28] that we pass the bill. The question is shall Senate Bill 373 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote



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